

CONTRACT FOR DIVERSION RELATED SERVICES
between
THE LARAMIE COUNTY COMMUNITY JUVENILE SERVICES JOINT POWERS
BOARD
And
THE CITY OF CHEYENNE, OFFICE OF YOUTH ALTERNATIVES

This Contract for Diversion Related Services (hereinafter “Agreement”) is made and entered into by and between the Laramie County Community Juvenile Services Joint Powers Board, 310 W. 19th Street, Cheyenne, Wyoming 82001 (“BOARD”) and the City of Cheyenne, Youth Alternatives, 1328 Talbot Court, Cheyenne, Wyoming 82001 (“CONTRACTOR”). The parties agree as follows:

I. PURPOSE

The purpose of this Agreement is to provide funding to CONTRACTOR to facilitate hiring and utilizing a Juvenile Diversion Coordinator (“COORDINATOR”) position. This position is intended to work directly with the Laramie County District Attorney’s Office to reduce truancy rates and identify behavioral concerns by implementing effective interventions for youth struggling with attendance and behavioral issues in Laramie County. These are services that could otherwise be rendered directly by the BOARD for the benefit of the public. This Agreement does not constitute a grant. It is a contract to purchase services provided by COORDINATOR as described in Attachment A, which is incorporated into this contract.

II. TERM AND FUNDING

This Agreement shall commence on January 1, 2025 or on the date this Agreement is fully executed by the duly authorized representatives of the parties to this Agreement, whichever is later. This Agreement shall remain in effect through June 30, 2026. This Agreement may be renewed subject to the mutual agreement of the parties, in writing, as to term, scope and cost of services, and availability of funding. This Agreement may be terminated in accordance with the terms and conditions set forth herein.

The source of funding for the BOARD to enter into this Agreement and to make payments for services to CONTRACTOR thereunder is funding which the BOARD receives from Laramie County, Wyoming, a governmental entity. As this Agreement is contingent upon the receipt of said funding, then in the event that the BOARD does not receive any or all funding from Laramie County necessary to fund or make payments under this Agreement, then BOARD may terminate this Agreement consistent with the terms of Section V, paragraph D of this Agreement.

III. PAYMENT

Through the approval of this Agreement, the BOARD has approved possible payment of up to \$156,251.30 (One Hundred and Fifty-Six Thousand, Two Hundred Fifty-One Dollars and

No Cents) for services to be provided by CONTRACTOR as described in Attachment A for the eighteen-month period between January 1, 2025 and June 30, 2026. Payment is contingent upon CONTRACTOR providing the services being contracted for through the hiring of and provision of services by COORDINATOR as reflected in this Agreement, including Attachment A. In no event, however, will the amount paid by BOARD to CONTRACTOR for the contracted services exceed \$156,251.30 (One Hundred and Fifty-Six Thousand, Two Hundred Fifty-One Dollars and No Cents)

Payment by BOARD for those services required to be provided by CONTRACTOR pursuant to this Agreement will be made in a series of eighteen monthly payments, with each such monthly payment being for one eighteenth (1/18) of the \$156,251.30 (One Hundred and Fifty-Six Thousand, Two Hundred Fifty One Dollars and No Cents) maximum total amount approved by the Board for these services as described herein. CONTRACTOR shall submit a monthly invoice reflecting the services provided and request for payment. These payments may be suspended or reduced for any period(s) of time in which the services are not rendered or are not rendered as required by this Agreement. Each such monthly payment will be made only after: (1.) receipt of CONTRACTOR's monthly invoice to BOARD, (2.) receipt of funds from Laramie County, Wyoming, and (3.) a vote of approval by BOARD to pay the submitted invoice. Payment shall be in accordance with Wyo. Stat. §16-6-602 (as amended).

IV. RESPONSIBILITIES OF CONTRACTOR

A. CONTRACTOR shall hire and manage the Juvenile Diversion Coordinator ("COORDINATOR") position to work cooperatively with the CONTRACTOR and Laramie County District Attorney's Office. This position will follow the Diversion Procedures set forth by the Laramie County District Attorney's Office. This position's responsibilities will relate to the provision of the services which are described in Attachment A and include the job duties set forth in Attachment A.

B. CONTRACTOR shall provide with their monthly invoices a report of the number of juveniles served during the month and cumulatively by the CONTRACTOR's services provided pursuant to this Agreement.

C. CONTRACTOR shall provide a report within seven days of the conclusion of each month which will include a narrative description of significant issues and opportunities, the number of youths served by these services and the total number of contact hours provided by each program during the previous month. CONTRACTOR shall provide all other reports as may be required by BOARD regarding the nature of the services being provided or other aspects of the CONTRACTOR'S performance under this Agreement.

D. CONTRACTOR shall collect and submit juvenile justice data in accordance with Wyo. Stat. §7-19-503.

E. CONTRACTOR agrees to retain all required records for three (3) years after BOARD makes final payment and all other matters relating to this Agreement are concluded. CONTRACTOR agrees to permit access by the BOARD or any of its duly authorized representatives to any books, documents, papers and records of the CONTRACTOR which are directly pertinent to this specific Agreement for purposes including but not limited to audit, examination, excerpts, and transcriptions. This provision shall not be applicable to confidential information regarding the juveniles served.

V. GENERAL PROVISIONS

A. Amendments. Any party to this Agreement may request changes to this Agreement. Any changes, modifications, revisions, or amendments which are mutually agreed upon by all parties shall be incorporated by written instrument, executed and signed by both parties to this Agreement.

B. Americans with Disabilities Act. All parties agree they will not discriminate against a qualified individual with disability, pursuant to a law as set forth in the Americans With Disabilities Act, P.L. 101-336, 42 U.S.C. § 12101, *et seq.*, and/or any properly promulgated rules and regulations relating thereto.

C. Applicable Law and Venue: The parties mutually understand and agree this Agreement shall be governed by and interpreted pursuant to the laws of the State of Wyoming. If any dispute arises between the parties from or concerning this Agreement or the subject matter hereof, any suit or proceeding at law or in equity shall be brought in the District Court of the State of Wyoming, First Judicial District, sitting at Cheyenne, Wyoming. The foregoing provisions of this paragraph are agreed by the parties to be a material inducement to CONTRACTOR and BOARD in executing this Agreement. This provision is not intended, nor shall it be construed, to waive the CONTRACTOR's or the BOARD's governmental immunity as provided in this Agreement.

D. Availability of Funds. BOARD's payment obligation is conditioned upon the availability of funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services and equipment provided by CONTRACTOR, the Agreement may be terminated by BOARD at the end of the period for which funds are available. BOARD shall notify CONTRACTOR at the earliest possible time of the services which will or may be affected by a shortage of funds. At the earliest possible time means at least thirty (30) days before the shortage will affect payment of claims if BOARD knows of the shortage at least thirty (30) days in advance. No penalty shall accrue to BOARD in the event this provision is exercised, and BOARD shall not be obligated or liable for any future payments due or for any damages or costs as a result of termination under this provision.

E. Conflict of Interest: BOARD and CONTRACTOR affirm, to their knowledge, no CONTRACTOR employee has any personal beneficial interest whatsoever in the agreement described herein. No staff member of CONTRACTOR, compensated either partially or wholly

with funds from this Agreement, shall engage in any conduct or activity which would constitute a conflict of interest relative to this Agreement.

F. Contingencies: CONTRACTOR certifies and warrants no gratuities, kickbacks or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts or other considerations made contingent upon the award of this Agreement.

G. Discrimination: All parties agree they will not discriminate against any person who performs work under the terms and conditions of this Agreement because of race, color, gender, creed, handicapping condition, or national origin.

H. Entire Agreement: This Agreement and Attachment A represent the entire and integrated agreement and understanding between the parties and supersede all prior negotiations, statements, representations, and agreements, whether written or oral.

I. Force Majeure: Neither party shall be liable to perform under this Agreement if such failure arises out of causes beyond control, and without the fault or the negligence of said party. Such causes may include, but are not restricted to, Act of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. In every case, however, a failure to perform must be beyond the control and without the fault or the negligence of said party.

J. Governmental/Sovereign Immunity: The BOARD and the CONTRACTOR do not waive their governmental/sovereign immunity by entering into this Agreement and specifically retain immunity and all defenses available to them pursuant to Wyo. Stat. § 1-39-101 *et seq.* and all other state laws. Further the BOARD and the CONTRACTOR retain all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Agreement.

K. Indemnification: Each of the parties to this agreement shall be responsible for any liability arising from its own conduct. None of the parties agrees to insure, defend or indemnify the other.

L. Independent Contractor: The services to be performed by CONTRACTOR and any personnel utilized by CONTRACTOR are those of an independent contractor and not as an employee of BOARD. CONTRACTOR assumes responsibility for all personnel who provide services pursuant to this contract.

M. Notices: All notices required and permitted under this Agreement shall be deemed to have been given, if and when deposited in the U.S. Mail, properly stamped and addressed to the party for whom intended at such parties' address listed herein, or when personally delivered personally to such party. A party may change its address for notice hereunder by giving written notice to the other party.

N. Severability: If any provision of this Agreement is held invalid or unenforceable by any court of competent jurisdiction, or if the BOARD or CONTRACTOR is advised of any such actual or potential invalidity or unenforceability, such holding or advice shall not invalidate or render unenforceable any other provision hereof. It is the express intent of the parties that the provisions of this Agreement are fully severable.

O. Termination: In addition to termination as permitted under any other terms of this Agreement, this Agreement may also be terminated (a) by any party to this Agreement at any time for failure of any other party to comply with the terms and conditions of this agreement; (b) by any party to this agreement, with thirty (30) days' prior written notice to the other party; or (c) upon mutual written agreement by all parties.

P. Third Parties: The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to the Agreement and shall inure solely to the benefit of the parties to this Agreement.

Q. Titles Not Controlling: Titles of paragraphs are for reference only and shall not be used to construe the language in this Agreement.

R. Waiver: The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach.

[The remainder of this page is intentionally left blank.]

CONTRACT FOR DIVERSION RELATED SERVICES
between
LARAMIE COUNTY COMMUNITY JUVENILE SERVICES JOINT POWERS BOARD
And
THE CITY OF CHEYENNE, OFFICE OF YOUTH ALTERNATIVES
Signature Page

In witness thereof, the parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions herein.

LARAMIE COUNTY COMMUNITY JUVENILE SERVICES JOINT POWERS BOARD

By:_____ Date _____
Kim Skoutary-Johnson, Chair

ATTEST:

By:_____ Date _____

REVIEWED AND APPROVED AS TO FORM ONLY:

By:_____ Date _____
Attorney for Laramie County Community Juvenile Services Joint Powers Board

CITY OF CHEYENNE, WYOMING

By:_____ Date _____
Patrick Collins, Mayor

ATTEST:

By:_____ Date _____

ATTACHMENT A

***To the Contract for Diversion Related Services between the Laramie County Community
Juvenile Services Joint Powers Board and the City of Cheyenne, Office of Youth Alternatives***

THE OFFICE OF YOUTH ALTERNATIVES JUVENILE DIVERSION

Mission Statement:

The mission of Youth Alternatives is to intervene in the lives of young people at an impressionable stage in their emotional growth and development when positive behaviors are more easily formed. As a result, young people can better explore new, more appropriate behaviors that help them see their strengths and the world as more positive.

Origin of Youth Alternatives:

Youth Alternatives is a department of the City of Cheyenne and is a government agency. The program was established in 1971 to provide services to youth on probation in the City of Cheyenne. Over the past 53 years, the program has been recognized by various organizations, including the U.S. Department of Juvenile Justice, the National Model Cities Directors Association, and the Institute for Youth, Education, and Families. Former President George W. Bush recognized the program as the "24th National Point of Light." Most recently, the National Child Labor Committee recognized one of Youth Alternatives' mentors for 35 years of work with troubled youth in Cheyenne.

Office Location:

The office is located at 1328 Talbot Court in Cheyenne. The ropes course and the Special Friends building are also at this location. The ACCISS program also utilizes space at Johnson Jr. High, Carey Jr. High, and East High School.

Background:

Youth Alternatives provides the City of Cheyenne and Laramie County with a coordinated response to the needs of troubled youth in the community. The program utilizes the community through volunteer mentors and community partnerships to modify the inappropriate behavior of troubled youth. The program is designed to intervene in the lives of young people at an impressionable stage in their growth and improve their school involvement and overall well-being. The program attempts to assist troubled youth to see themselves as better people and the world less hostile by providing preventative, supportive, and rehabilitative services.

In 2012, a survey was conducted by Jennifer Dockter, an M.S.W. candidate at the University of Wyoming, regarding where youth service providers refer children with behavior and family problems. The survey was conducted with 17 youth-serving agencies, involving 227 respondents, and the following was determined: 1. *"Youth Alternatives was the first choice for 56% of the respondents compared to 4% for the next highest first choice selection."* and 2. *"Youth Alternatives was the leading choice among nearly every occupational group."* The report also indicated that Youth Alternatives was the leading choice of 69% of District counselors, principals, psychologists, and

social workers. The report can be reviewed on the Department of Family Services website. Search for "survey."

While not all the students referred to Youth Alternatives for assistance are school referrals, 99% of the youth in the program are students from Laramie County School District Number One.

Understanding that many program developments have been in conjunction with the District is essential. A brief history of our involvement with the community and the District follows.

In 1981, Youth Alternatives began statewide training in family therapy. The program developed specialized child and adult groups in divorce and step-families.

In 1982, the District and Youth Alternatives began a formal partnership, providing after-school counseling support to students and their families.

During the 1986-1987 school year, the Youth Alternatives coordinator and the District's counselors, social workers, and principals began regular weekly school contacts. This led to the development the crisis teams at Central, McCormick, and East, with the Youth Alternatives school designee being one of the team's founding members.

Early in 1988, crisis teams began at Johnson, High School III, and Carey. These teams were comprised of District personnel and the coordinator of the school program from Youth Alternatives. Two in-services were provided: 1. Community Agencies: Who They Are and What They Do, and Workshop for crisis teams.

Also, in 1988, the School District and Youth Alternatives collaborated to develop the Adolescent Day Treatment Program. The goal was to keep the students in the District, avoiding an out-of-district placement. The project was designed for youth with severe emotional and behavioral problems and was the first in Wyoming. Youth Alternatives ran the program for approximately nine years before the District took over the program.

In 1990, Youth Alternatives was recognized for outstanding volunteer mentoring by President George Bush and was designated as the 24th Point of Light, and in 1991, the program received a medal commemorating this honor at a ceremony in Florida. District-referred students are matched with positive adult mentors. These matches significantly differ in the lives of the youth and the mentors.

The 1994-1995 school year was the beginning of the Alternative Experiences Program, better known as the Community Challenge Ropes Course. That first year, groups from Pioneer Park, Afflerbach, Dildine, Arp, and Cole participated in this experience. The course was also used with High School III and now Triumph to help classes like New Dawn and Discovery assist District students in functioning more effectively. The course allows students to learn about communication, trust, and teamwork. Over the years, many grade-level classrooms have used the ropes course to help them work together. Teachers and administrative teams from several schools also used the course to create unity and cooperation.

The P.E.P. Center and Youth Alternatives collaborated to provide a program for suspended and expelled students from 1995 to 2009. The referring schools made referrals for long-term suspensions (45 days), while expelled students were self or parent referred. In 2009, the District took over the program, now known as the Educational Annex Program. It still serves long-term suspended students.

During the 2003-2004 School year, the District and Youth Alternatives began the School Work Alternatives Program (S.W.A.P.), which allowed suspended students to "work off a portion of their 3–5-day suspension by performing community service work supervised by Youth Alternatives. For example, students suspended for four days were allowed to return to school in 2 days if they completed two days of community service. This minimized the time the students were out of school but held them accountable for their behaviors. Because attendance positively correlates with school success, getting the student back into school quickly promotes a successful outcome. Parents were also pleased with this sanction as their child wasn't sitting around the house playing video games while suspended. This program is still available to suspended students in the District.

The Alternative Center for Community Involvement and School Success Program (A.C.C.I.S.S.) began in 2008. It is a joint program between the District and Youth Alternatives. It provides year-round programming focused on assisting students to regularly attend school, perform academically to their ability, and manage their behavior so it doesn't get them into trouble. The program was running at Johnson Jr. High and Carey Jr High until the program was discontinued in August 2023. In 2012, the Kinship Program was incorporated into the services offered through Youth Alternatives. This program has assisted families in the District seeking permanent or temporary guardianship of a child. This service has been highly beneficial in helping children get enrolled in the District. During the 2013-2014 school year, we began sending our counselors to the secondary schools to provide individual counseling to select student referrals. Generally, these referrals were for students who didn't qualify for I.E.P. services but needed support to be successful. The school social worker, counselor, or psychologist usually makes the referrals. Youth Alternatives counselor met with the student at school to provide support and assistance. In many cases, family sessions were also conducted at Youth Alternatives.

In 2017, Youth Alternatives developed a suspension program for elementary-aged youth suspended due to behavioral issues. The goal is to provide intervention services while the youth is suspended, understanding that if they participate in the program for half their suspension, the remaining time will be waived, allowing them to return to the education setting much sooner. While in the program, student receive counseling services, complete community service projects, and work on assignments provided by their teachers. This program has been unfunded since its inception, and the services are provided as a courtesy to the District.

In 2020, Youth Alternatives became the sponsor of the Foster Grandparent Program, which provides volunteers to work in District classrooms, mentoring and tutoring youth.

It should be noted that Youth Alternatives has provided Suicidal/Homicidal assessments and

intervention for the District over the past decade as a courtesy. However, Youth Alternatives has experienced a significant influx of referrals from the District since 2017. This influx has significantly impacted our staff and existing family counseling cases due to the cancelation of family sessions to facilitate the suicidal/homicidal referrals immediately.

Diversion Goals:

The Diversion Program aims to reduce the truancy rate and identify behavioral concerns by implementing effective interventions for youth struggling with attendance and behavioral issues in Laramie County.

Diversion Goals:

1. Improve school attendance for identified youth.
2. Improve the academic outcomes for identified youth.
3. Improve identified youth's social-emotional lives.
4. Increase youth and family access to services in the community.
5. Decrease juvenile delinquency and recidivism.

Individuals Served:

Juvenile Diversion Services are available to all youth between the ages of 5 and 16 and their family who have been identified by Laramie County School District #1 for truancy issues and other juvenile cases identified by the District Attorney's Office.

Youth Alternatives Juvenile Diversion Coordinator

GENERAL JOB DESCRIPTION

To coordinate Juvenile Diversion Services through the District Attorney's Office and assist the District Attorney in planning, directing, managing, and overseeing the activities and operations of the Juvenile Diversion Program with the partnership of Youth Alternatives (a criminal justice agency); to coordinate assigned activities with other outside agencies; and to provide highly responsible and complex administrative support to the District Attorney.

PRIMARY DUTIES AND RESPONSIBILITIES

- Complete assignments and projects as assigned by the Director; enforce rules, regulations, and policies established by the department and the City. Provide responsible staff assistance to the Youth Alternatives Director.
- Oversee the day-to-day operations of the Juvenile Diversion Program through the District Attorney's Office and the guidance of the District Attorney.
- Manage and participate in the development and implementation of goals, objectives, policies, and priorities related to the Juvenile Diversion Program as directed by the District Attorney.
- Monitor and evaluate the efficiency and effectiveness of service delivery methods and procedures; identify resource need; recommend appropriate service and staffing levels.
- Assume management responsibility for all services and activities of assigned programs with Youth Alternatives.
- Provide court, counseling, and emergency services and support to the youth and their families who are participating in the Juvenile Diversion Program; serve as advocate for clients in schools, courts, and the legal system; maintain accurate client records.
- Serve as liaison for the District Attorney/Youth Alternatives with other departments, divisions and outside agencies including the Municipal and Circuit Courts.
- To work directly with youth and families who have been offered the Juvenile Diversion Program to reduce truancy and dropout rates in the Laramie County School District.
- To aid in the prevention of out-of-control behavior through the coordination of services to youth and families participating in the Juvenile Diversion Program, thereby reducing the number of youth entering the Juvenile Justice System.
- To monitor the progress of the youth and families participating in the Juvenile Diversion Program.

SECONDARY DUTIES AND RESPONSIBILITIES

- Assist with public relations work and prepare program publications; aid with special events; direct calls, questions, and concerns from the schools as well as the youth and families participating in the program.
- Attend and participate in professional group meetings and various committee meetings; make presentations to schools, committees, and parent meetings; stay abreast of new trends and innovations in the field of Juvenile Justice, Family Counseling and Juvenile Prevention.
- Perform other duties and responsibilities as required.

Budget	Year 1	Year 2	2 Year Total
	Jan 1, 2025- June 30, 2025	Projected COLA 5% Jul 1, 2025- June 30, 2026	
Salary	30,000.00	63,000.00	93,000.00
Health Insurance family	13,402.00	26,804.00	40,206.00
Social Security	2,295.00	4,819.50	7,114.50
State Pension	4,386.00	9,210.60	13,596.60
Workers Compensation	762.00	1,600.20	2,362.20
Life Insurance	24.00	48.00	72.00
Total	50,869.00	105,482.00	156,251.30